

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DPS

Date: 5/20/2026

Bill Number: HB 239

Short Title (as it appears on BASIS): CRIM. NEG. HOMICIDE; FAILURE TO ASSIST

What action do you recommend the Governor take?

Select one.

☒ **SIGN** ☐ **VETO** ☐ **LWOS**

Action Justification – Why do you recommend the above action?

Please be specific.

The Governor's bill, HB 62 Sexual Assault Examination Kit is included in the bill. The Department particularly supports the mandate to codify the statewide sexual assault examination kit tracking system, which will continue to improve victim notification, increase accountability across the evidence chain, and bring Alaska into alignment with best practices in sexual assault investigation. This legislation strengthens Alaska's criminal statutes by expanding protections for minor victims, creating new offenses for AI-generated child sexual abuse material, and enhancing investigative tools available to law enforcement, all of which directly advance DPS's public safety mission.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

CONFIDENTIAL & DELIBERATIVE

**State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION**

House Bill 239 is an omnibus criminal justice bill that expands and updates Alaska law relating to violent crimes, sexual offenses, child exploitation offenses, sentencing, juvenile justice, sexual assault examination kits, and correctional procedures. The bill increases protections for minors by raising several age thresholds from under 16 to under 18, expands crimes involving sexual abuse and exploitation of minors, and creates new criminal offenses related to generated or manipulated child sexual abuse material. It wraps in elements of the following bills:

- [SB 31](#) ADDRESS CONFIDENTIALITY PROGRAM
- [HB 101](#) CRIMES AGAINST MINORS; AGE CONSENT TO 18
- [HB 239](#) CRIM. NEG. HOMICIDE; FAILURE TO ASSIST
- [SB 247](#) GENERATED OBSCENE CHILD SEX ABUSE MATERIAL
- [HB 62](#) SEXUAL ASSAULT EXAMINATION KITS/TRACKING
- [HB 242](#) SEXUAL ASSAULT BY HEALTH CARE WORKER
- [SB 100](#) THEFT: ORGANIZED; MED. RECORDS; MAIL
- [SB 233](#) CONTROLLED SUBSTANCES ADVISORY COMMITTEE
- [HB 81](#) ACCESS TO MARIJUANA CONVICTION RECORDS
- [HB 384](#) DEFINITION OF 'VICTIM COUNSELING CENTER'
- [SB 17](#) CRIME COUNTERFEIT/NONFUNCTIONING AIRBAG
- [SB 62](#) BOARD OF PAROLE: MEMBERSHIP, REPORT

The bill creates new crimes for distribution and possession of generated obscene child sexual abuse material under newly created statutes, AS 11.61.121 and AS 11.61.122, and incorporates those offenses throughout Alaska statutes governing sentencing, probation, suspended imposition of sentence eligibility, sex offender registration, juvenile disclosure, and forfeiture. It also expands existing child exploitation statutes to include “contact with semen” as prohibited conduct and updates laws relating to enticement of a minor, indecent exposure, solicitation of indecent images of minors, and distribution of indecent material to minors. This bill also limits the release of criminal justice information for certain marijuana convictions that would not be criminal under current law.

The bill also addresses other criminal justice issues by increasing penalties for certain hit-and-run offenses, creating the crime of airbag fraud, establishing stricter penalties for possession of obscene material depicting sexual conduct with animals, and expanding public access to information involving certain serious juvenile offenses. In addition, the bill updates sentencing statutes and presumptive sentencing ranges for several sexual and exploitation-related felonies.

The bill codifies the statewide sexual assault examination kit tracking system to be operated by the Department of Public Safety. Victims’ Rights are enhanced and will be implemented through the system which will allow sexual assault kits to be tracked from collection through testing and

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

permit victims to receive status updates regarding their kits. The bill also establishes mandatory reporting and data entry requirements for entities handling sexual assault examination kits and creates a new medical release by electronic monitoring process for certain incarcerated individuals with serious medical conditions.

In Senate Finance, SB 31 Address Confidentiality and SB 62 Board of Parole: Membership; Report were added to the bill. The address confidentiality program provisions included in this legislation establish an address confidentiality option for peace officers, correctional officers, victims of crimes involving domestic violence, stalking, or sexual assault, and members of their households. The program would provide a substitute mailing address and mail forwarding service administered by the Department of Administration. The board of parole membership composition was expanded to seven and two-term limits were instituted. Four members are now specifically identified in statute. It also makes changes regarding discretionary parole determinations to include consideration of an offenders age at the time of the offense. It also establishes a tribal liaison position within the Department of Corrections.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1. [AS 09.55.650\(a\)](#) Civil Action for Sexual Abuse of a Minor: Raises the age of a victim eligible to bring a civil damages action against a perpetrator of sexual abuse from under 16 to under 18 years of age at the time of the abuse. No direct DPS impact.

Section 2. [AS 11.41.100\(a\)](#) Murder in the First Degree: Raises the age threshold for child victims in felony murder provisions from under 16 to under 18 years of age in subsections (a)(2) and (a)(3). Expands the universe of conduct subject to first-degree murder charges. Direct impact on AST criminal investigations and charging referrals.

Section 3. [AS 11.41.110\(a\)](#) Murder in the Second Degree: Raises the age threshold for child victims in subsection (a)(5) from under 16 to under 18 years of age for criminally negligent homicide with a prior child-related felony. Direct impact on AST criminal investigations.

Section 4. [AS 11.41.220\(a\)](#) Assault in the Third Degree: Raises the protected age for victims of knowing physical injury from under 16 to under 18 years of age in subsection (a)(3). Direct impact on AST enforcement and charging referrals.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 5. [AS 11.41.220\(b\)](#) Assault in the Third Degree — Affirmative Defense: Raises the age threshold in the affirmative defense provision from 16 to 18 years of age, consistent with the amendment in Section 4. Direct impact on AST criminal investigations.

Section 6. [AS 11.41.260\(a\)](#) Stalking in the First Degree: Raises the victim age threshold from under 16 to under 18 years of age as a basis for elevating stalking to first degree. Direct impact on AST enforcement authority.

Section 7. [AS 11.41.410\(a\)](#) Sexual Assault in the First Degree: Removes the requirement that the victim be unaware a sexual act is being committed when the offender is a health care worker engaged in sexual penetration during professional treatment. Broadens the statute to apply regardless of victim awareness. Direct impact on AST criminal investigations.

Section 8. [AS 11.41.420\(a\)](#) Sexual Assault in the Second Degree: Removes the requirement that the victim be unaware a sexual act is being committed when the offender is a health care worker engaged in sexual contact during professional treatment. Parallel amendment to Section 7. Direct impact on AST criminal investigations.

Section 9. [AS 11.41.434\(a\)](#) Sexual Abuse of a Minor in the First Degree: Raises the protected victim age in subsection (a)(3) — authority/household circumstances — from under 16 to under 18 years of age. Direct impact on AST criminal investigations and sex offender registry qualifying offenses.

Section 10. [AS 11.41.436\(a\)](#) Sexual Abuse of a Minor in the Second Degree: Raises the protected age in subsection (a)(5) — authority/household circumstances — from under 16 to under 18 years of age; adds a new subsection (a)(6) criminalizing sexual penetration with a person who is 16 or 17 years of age, at least three years younger than the offender, where the offender occupies a position of authority. Direct impact on AST investigations and sex offender registry qualifying offenses.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 11. [AS 11.41.438\(a\)](#) Sexual Abuse of a Minor in the Third Degree: Restructures the offense to clarify that it applies when the offender, being 17 or older, engages in sexual contact with a person who is 13–15 and at least four years younger, or 16–17 and at least six years younger. Technical clarification with potential impact on AST investigations.

Section 12. [AS 11.41.452\(a\)](#) Enticement of a Minor: Expands the list of predicate acts from subsections (a)(1)–(7) to (a)(1)–(8) of AS 11.41.455, adding contact with semen as a covered act. Replaces the term "child" with specific age-based criteria for 16–17 year old victims. Direct impact on AST investigations.

Section 13. [AS 11.41.452\(b\)](#) Enticement of a Minor — Defense: Conforms the defense provision to the age-based restructuring in Section 12, replacing "child" with specific age-bracket language. Technical conforming amendment.

Section 14. [AS 11.41.452\(c\)](#) Enticement of a Minor — Proof of Act: Conforms the provision to the expanded predicate act list (subsections (a)(1)–(8)), consistent with Sections 12 and 16. Technical conforming amendment.

Section 15. [AS 11.41.452\(e\)](#) Enticement of a Minor — Enhanced Penalty: Replaces the term "defendant" with "offender" to align with statutory drafting conventions. No substantive change to the Class A felony enhancement for registered sex offenders.

Section 16. [AS 11.41.455\(a\)](#) Unlawful Exploitation of a Minor: Adds "contact with semen" as a new eighth category of conduct (subsection (a)(8)) subject to the unlawful exploitation statute. Direct impact on AST investigations and CSAM-related prosecutions.

Section 17. [AS 11.41.458\(b\)](#) Indecent Exposure in the First Degree: Raises the victim age threshold for the Class B felony enhancement from under 16 to under 18 years of age. Direct impact on AST enforcement and sex offender registration qualifying offenses.

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 18. [AS 11.41.460\(b\)](#) Indecent Exposure in the Second Degree: Raises the victim age threshold for the Class A misdemeanor enhancement from under 16 to under 18 years of age. Direct impact on AST enforcement and sex offender registration qualifying offenses.

Section 19. [AS 11.46.140\(a\)](#) Theft in the Third Degree: Adds theft of mail as a standalone basis for third-degree theft, regardless of value. Removes two previously repealed subsections from the statutory text. Direct impact on AST enforcement authority.

Section 20. [AS 11.46.140\(c\)](#) Theft in the Third Degree — Definitions: Adds definitions for "authorized depository," "mail," "mail receptacle," and "postage" to support the mail theft provision created in Section 19. No direct DPS administrative impact.

Section 21. [AS 11.51.100\(a\)](#) Endangering the Welfare of a Child in the First Degree: Raises the child victim age threshold for the offense from under 16 to under 18 years of age. Direct impact on AST enforcement authority.

Section 22. [AS 11.61.116\(a\)](#) Sending an Explicit Image of a Minor: Raises the age threshold for the protected victim from under 16 to under 18 years of age. Direct impact on AST investigations.

Section 23. [AS 11.61.118\(a\)](#) Harassment in the First Degree: Adds AS 11.41.455 (Unlawful Exploitation of a Minor) as a proscribing statute, such that conduct covered by that section is excluded from harassment in the first degree. Technical conforming amendment.

Section 24. [AS 11.61.120\(a\)](#) Harassment in the Second Degree: Raises the victim age in subsection (a)(7) from under 16 to under 18 years of age for cyberbullying-related conduct; adds AS 11.61.121 and 11.61.128 as proscribing statutes for the distribution of genital images in subsection (a)(8). Technical conforming amendment.

Section 25. AS 11.61.121–11.61.122 (New) Distribution and Possession of Generated Obscene Child Sexual Abuse Material: Creates two new criminal offenses:

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

- [AS 11.61.121](#) — **Distribution of Generated Obscene CSAM:** Class B felony (Class A felony for prior offenders). Applies to AI-generated or manipulated material depicting minors in sexual conduct. Possession of 100 or more items prima facie evidence of intent to distribute. Includes safe harbor for ISP/cloud/telecom employees acting within scope of employment.
- [AS 11.61.122](#) — **Possession of Generated Obscene CSAM:** Class C felony. Applies an obscenity-based standard (prurient interest, patently offensive, lacks serious value) to AI-generated depictions of minors under 18 in sexual conduct. Safe harbor for ISP/cloud/telecom employees.

Direct DPS impact: New qualifying offenses for sex offender registration (see Section 60), criminal history records, APSIN updates, and AST investigations. Additional new investigative workload anticipated.

Section 26. [AS 11.61.124\(a\)](#) Solicitation or Production of an Indecent Picture of a Minor: Restructures age-based criteria for both solicitation and production provisions, replacing general minor age language with specific tiered age brackets (16–17 with six-year age gap; under 16 with four-year age gap). Direct impact on AST investigations.

Section 27. [AS 11.61.124\(b\)](#) Solicitation or Production of an Indecent Picture — Defense: Conforms the defense provision to the restructured age-based criteria in Section 26. Technical conforming amendment.

Section 28. [AS 11.61.125\(b\)](#) Distribution of Child Sexual Abuse Material — Exemptions: Adds ISP, cloud service provider, and telecommunications network employees acting within the scope of employment as exempt from prosecution when their conduct is solely directed at preventing, detecting, or reporting CSAM distribution. Aligns exemptions with those created for generated obscene CSAM in Section 25.

Section 29. [AS 11.61.125\(e\)](#) Distribution of Child Sexual Abuse Material — Penalty: Adds prior conviction for distribution of generated obscene CSAM under AS 11.61.121 as a basis for the Class A felony enhancement. Cross-links the new offense in Section 25 to existing CSAM penalty structure.

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 30. [AS 11.61.127\(a\)](#) Possession of Child Sexual Abuse Material: Conforms the predicate conduct list to subsections (a)(1)–(8) of AS 11.41.455, adding contact with semen as covered conduct. Also refines language regarding depictions of actual children. Direct impact on AST investigations.

Section 31. [AS 11.61.127\(b\)](#) Possession of Child Sexual Abuse Material — Exemptions: Adds ISP, cloud service provider, and telecommunications network employees as exempt from prosecution when acting within scope of employment to prevent, detect, or report CSAM. Consistent with exemptions in Sections 25 and 28.

Section 32. [AS 11.61.128\(a\)](#) Distribution of Indecent Material to Minors: Raises the protected victim age from under 16 to under 18 years of age; replaces "person" with "offender" for drafting consistency; adds contact with semen as a new category of covered conduct (subsection (a)(2)(G)). Direct impact on AST investigations.

Section 33. [AS 11.61.128\(b\)](#) Distribution of Indecent Material to Minors — Defense: Raises the age threshold in the defense provision from 16 to 18 years of age, conforming to Section 32.

Section 34. [AS 11.61.128\(c\)](#) Distribution of Indecent Material to Minors — Definitions: Raises the age threshold in the definition of "harmful to minors" from under 16 to under 18 years of age in all three prongs of the definition.

Section 35. [AS 11.61.128\(e\)](#) Distribution of Indecent Material to Minors — Enhanced Penalty: Replaces "defendant" with "offender" for drafting consistency. No substantive change to the Class B felony enhancement for registered sex offenders.

Section 36. [AS 11.61.129\(a\)](#) Forfeiture of Property Used in CSAM Offenses: Expands the forfeiture provision to include violations of AS 11.61.121 and 11.61.122 (the new generated obscene CSAM offenses created in Section 25). Direct impact on AST asset forfeiture authority.

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 37. [AS 11.61.140\(a\)](#) Cruelty to Animals: Adds two new categories of prohibited conduct: (a)(7) intentionally permitting sexual conduct with an animal on premises under the person's control; and (a)(8) knowingly possessing or accessing on a computer material that depicts bestiality in a patently offensive manner and lacks serious value, under an obscenity-based standard. Direct impact on AST/AWT enforcement authority, specifically where animal welfare investigations intersect.

Section 38. [AS 11.61.140\(g\)](#) Cruelty to Animals — Misdemeanor Penalty: Adds subsection (a)(8) — the new computer-based bestiality material possession offense — to the Class A misdemeanor penalty provision. Conforms penalty structure to new offense.

Section 39. [AS 11.61.140\(h\)](#) Cruelty to Animals — Felony Penalty: Adds subsection (a)(8) to the Class C felony enhancement provision applicable to repeat offenders. Conforms penalty structure to new offense.

Section 40. [AS 11.66.100\(c\)](#) Prostitution — Immunity Provision: Adds distribution of generated obscene CSAM (AS 11.61.121) and possession of generated obscene CSAM (AS 11.61.122) to the list of serious crimes a person may witness or be a victim of and report to law enforcement in good faith in order to qualify for immunity from prosecution for prostitution. Renumbers existing list items from letter designations to numeral designations. No direct DPS administrative impact.

Section 41. [AS 11.71.100\(a\)](#) Controlled Substances Advisory Committee: Relocates the Controlled Substances Advisory Committee from the Division of Law to the division of the Department of Commerce, Community, and Economic Development responsible for corporations, business, and professional licensing. The Commissioner of Public Safety retains a seat on the committee. Indirect DPS impact; no operational change to DPS's role on the committee.

Section 42. [AS 12.10.010\(a\)](#) Limitation of Actions — No Time Limit Offenses: Adds distribution of generated obscene CSAM under AS 11.61.121 to the list of offenses for which prosecution may be commenced at any time (no statute of limitations). Expands the no-limitation category consistent with treatment of existing CSAM distribution offenses.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 43. [AS 12.45.046\(a\)](#) Testimony of Children in Criminal Proceedings: Raises the age threshold for special testimony procedures (closed-circuit television, one-way mirrors, guardian ad litem appointment) from under 16 to under 18 years of age for both child victims and child witnesses. Indirect DPS impact on AST victim/witness coordination in investigations.

Section 44. [AS 12.55.078\(f\)](#) Suspension of Imposition of Judgment — Restrictions: Adds AS 11.61.121 and 11.61.122 (new generated obscene CSAM offenses) to the list of offenses for which courts may not suspend judgment or defer prosecution. Consistent with existing treatment of CSAM offenses.

Section 45. [AS 12.55.085\(f\)](#) Suspension of Sentence — Restrictions: Adds AS 11.61.121 and 11.61.122 to the list of offenses for which courts may not suspend imposition of sentence. Consistent with existing treatment of CSAM offenses.

Section 46. [AS 12.55.100\(e\)](#) Probation Conditions — Sex Offenses: Adds AS 11.61.121 and 11.61.122 to the list of offenses for which discretionary probation conditions (restrictions on internet use, contact with minors, computer possession, proximity to schools) may be imposed. Direct indirect impact on AST: probation officers are required to forward internet identifiers provided by sex offenders on probation to AST and local law enforcement.

Section 47. [AS 12.55.125\(b\)](#) Sentencing — Unclassified and Class A Felonies: Raises the victim age threshold in the enhanced mandatory minimum (20-year floor) for second-degree murder of a child from under 16 to under 18 years of age where the defendant was a parent, guardian, or person in authority, or caused death through a crime against a person. Direct impact on AST charging referral assessments.

Section 48. [AS 12.55.125\(d\)](#) Sentencing — Class B Felonies: Raises the victim age threshold in the two-to-four-year presumptive range for criminally negligent homicide of a child from under 16 to under 18 years of age. Consistent with the age-expansion framework of the bill.

Section 49. [AS 12.55.125\(i\)](#) Sentencing — Sexual Felonies: Incorporates the new generated obscene CSAM offenses (AS 11.61.121 and 11.61.122) into the sexual felony sentencing framework, establishing presumptive sentencing ranges. Also adds the new patron of a victim of

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

sex trafficking citation format and updates cross-references throughout. Direct impact on AST case documentation and charging referrals.

Section 50. [AS 12.55.127\(c\)](#) Consecutive Sentencing — Crimes Under AS 11.41: Adds a consecutive sentencing provision for criminally negligent homicide and criminally negligent homicide of an unborn child when sentenced with additional offenses under AS 28.35.050 or AS 28.35.060. Limited AST impact.

Section 51. [AS 12.55.127\(d\)](#) Consecutive Sentencing — CSAM Offenses: Adds AS 11.61.121 (distribution of generated obscene CSAM) and AS 11.61.122 (possession of generated obscene CSAM) to the consecutive sentencing requirement for multiple CSAM-related convictions. Direct impact on AST case documentation.

Section 52. [AS 12.55.145\(a\)](#) Prior Convictions — Sentencing: Raises the victim age threshold in the definition of prior sexual felony conviction from under 16 to under 18 years of age for out-of-state lewd and lascivious act convictions. Conforming amendment to the bill's age-expansion framework.

Section 53. [AS 12.55.155\(c\)](#) Aggravating Factors: Raises the victim age threshold in the domestic violence aggravating factor (child present during offense) from under 16 to under 18 years of age. Conforming amendment.

Section 54. [AS 12.55.185\(16\)](#) Definition of "Sexual Felony": Adds distribution of generated obscene CSAM, possession of generated obscene CSAM, and felony attempt/conspiracy/solicitation to commit those crimes to the statutory definition of "sexual felony." **Direct DPS impact:** Affects sex offender registration qualifying offense determinations under AS 12.63 and APSIN records.

Section 55. [AS 12.61.010\(a\)](#) Rights of Crime Victims: Adds as a new enumerated victim right (subsection (a)(16)) the right to be notified of the location and testing date of a sexual assault examination kit collected from the victim. **Direct DPS impact:** Ties to the codified SAK tracking system created in Sections 83 and 84; AST will have notification obligations.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 56. [AS 12.62.160\(b\)](#) Dissemination of Criminal Justice Information: Adds a cross-reference to the new subsection (f) — restricting release of certain marijuana conviction records — as an additional category of information that may not be released under the general dissemination provision. Effective January 1, 2027. **Direct DPS impact:** DPS manages criminal history records under AS 12.62; this creates a new restriction on record release requiring system and policy updates.

Section 57. [AS 12.62.160\(f\)](#) Criminal Justice Information — Marijuana Conviction Records: Creates a new prohibition on the release of criminal justice information for cases where the defendant was convicted solely of possession of less than one ounce of a Schedule VIA controlled substance (marijuana), was 21 or older at time of offense, had no other convictions in the case, and requests non-release. Sunsets January 1, 2028 (see Section 87). Effective January 1, 2027. **Direct DPS impact:** Requires modification to criminal history record dissemination procedures and potentially APSIN/CJIS systems. New administrative workload for DPS criminal history repository.

Section 58. [AS 12.62.900\(22\)](#) Definition of "Serious Offense": Adds AS 11.61.121 (distribution of generated obscene CSAM) to the definition of "serious offense" used for background check purposes under AS 12.62.900. Also corrects a statutory cross-reference error (AS 11.51.130 and 11.51.200–11.56.210). **Direct DPS impact:** Affects Public Law 92-544 background checks and the "serious offense" determination in DPS-managed background check systems.

Section 59. [AS 12.63.020\(a\)](#) Sex Offender Registration — Duration of Duty: Raises the victim age threshold in the lifetime registration trigger for indecent exposure convictions from under 16 to under 18 years of age. **Direct DPS impact:** Affects sex offender registry administration and lifetime registration determinations maintained by DPS.

Section 60. [AS 12.63.100\(7\)](#) Definition of "Sex Offense": Adds AS 11.61.121 and 11.61.122 (generated obscene CSAM offenses) as qualifying sex offenses requiring registration; raises the victim age threshold for indecent exposure registration triggers from under 16 to under 18 years of age; rennumbers existing subsection citations throughout. **Direct DPS impact:** Significant — expands the sex offender registry population; requires updates to APSIN and the sex offender registration system.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 61. [AS 14.20.030\(b\)](#) Teaching Certificates — Revocation: Adds AS 11.61.121 and 11.61.122 (generated obscene CSAM) to the list of offenses requiring lifetime revocation of a teaching certificate. DPS impact is indirect; DPS provides criminal history record information to DEED for licensing purposes under AS 12.62.

Section 62. [AS 18.66.250\(5\)](#) Definition of "Victim Counseling Center": Removes the requirement that a qualifying victim counseling center not be on contract with the state under AS 47. Expands the definition, potentially broadening communications privilege protections for more organizations serving domestic violence and sexual assault victims. No direct DPS operational impact; indirect impact on DPS investigations where privilege assertions arise.

Section 63. [AS 28.15.046\(c\)](#) School Bus Driver Licensing — Disqualifying Offenses: Adds AS 11.61.121 and 11.61.122 (generated obscene CSAM offenses) as permanent disqualifying convictions for school bus driver licensure. DPS impact is indirect through criminal history record checks administered by DPS for DMV licensing purposes.

Section 64. [AS 28.35.060\(b\)](#) Duty to Render Assistance — Penalty (General): Technical conforming amendment; clarifies that the general penalty provision does not apply to the enhanced felony provisions created or amended in Sections 65 and 66. No substantive change to the general misdemeanor penalty.

Section 65. [AS 28.35.060\(c\)](#) Duty to Render Assistance — Injury (Class B Felony): Elevates failure to render reasonable assistance in an accident resulting in injury from a penalty of up to 10 years imprisonment and \$10,000 fine to a Class B felony punishable under AS 12.55. Replaces specific penalty language with the standard felony sentencing framework. **Direct DPS impact:** AST traffic enforcement and crash investigation authority is affected by the elevated offense classification.

Section 66. [AS 28.35.060\(d\)](#) Duty to Render Assistance — Death (Class A Felony) (New): Creates a new Class A felony for failure to render reasonable assistance in an accident resulting in death. **Direct DPS impact:** Creates a new chargeable offense for AST traffic investigators; expands enforcement authority at fatal crash scenes.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 67. [AS 28.35.248](#) Airbag Fraud (New): Creates a new criminal offense of airbag fraud covering the sale, manufacture, installation, or trade of counterfeit, nonfunctioning, or noncompliant replacement airbags. Class A misdemeanor; elevated to Class C felony if death or serious physical injury results. Includes exemptions for police vehicles, good-faith dealers, insurance companies, and disclosing sellers. **Direct DPS impact:** Creates a new chargeable offense within AST's general enforcement authority; no specialized enforcement mechanism created.

Section 68. [AS 33.16.020\(a\)](#) Board of Parole — Membership: Expands the Board of Parole from five to seven members appointed by the governor, subject to legislative confirmation. Effective January 1, 2027. No direct DPS impact; Department of Corrections impact.

Section 69. [AS 33.16.020\(b\)](#) Board of Parole — Term Limits: Establishes a two-term limit for Board of Parole members and removes the prior "until successors are appointed" language. Effective January 1, 2027. No direct DPS impact.

Section 70. [AS 33.16.030\(b\)](#) Board of Parole — Composition Requirements: Repeals and reenacts the composition requirements for the seven-member board, requiring at minimum: one licensed physician/psychologist/psychiatrist; one criminal justice professional; one person with drug/alcohol addiction recovery experience; and one member of a federally recognized tribe. Effective January 1, 2027. No direct DPS impact.

Section 71. [AS 33.16.030\(d\)](#) Board of Parole — Definitions (New): Adds definitions for "crime" and "federally recognized tribe" to AS 33.16.030. Effective January 1, 2027. No direct DPS impact.

Section 72. [AS 33.16.100\(g\)](#) Discretionary Parole — Considerations: Adds age at the time of the offense and participation in treatment as explicit factors the Board of Parole must consider when evaluating prisoners for discretionary parole release. Applies to all currently incarcerated prisoners. No direct DPS impact; Department of Corrections impact.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 73. [AS 33.30.068](#) Medical Release for Service of Sentence by Electronic Monitoring (New): Creates a new mechanism for the Commissioner of Corrections to authorize medical release with continuous electronic monitoring for prisoners with terminal, permanent, progressively degenerative, or other serious medical conditions where release would result in state cost savings and no public safety threat. Prisoners convicted of sexual abuse of a minor (AS 11.41.434–11.41.440), unlawful exploitation of a minor (AS 11.41.455), or sexual conduct with animals (AS 11.61.140(a)(6)) are explicitly ineligible. Applies to all currently incarcerated prisoners. No direct DPS impact; Department of Corrections impact.

Section 74. [AS 44.21.020](#) Duties of the Department of Administration: Adds administration of the new address confidentiality program (AS 44.21.022) as an enumerated duty of the Department of Administration. Removes two previously repealed subsections. No direct DPS operational impact; DPS peace officers are eligible enrollees and DPS may receive address disclosures pursuant to search warrants.

Section 75. [AS 44.21.022](#) Address Confidentiality Program (New): Establishes a new Address Confidentiality Program (ACP) within the Department of Administration. Eligible enrollees include: domestic violence, stalking, and sexual assault victims with protective orders or meeting department standards; guardians of protected minors; peace officers; correctional officers; and household members of enrollees. Sex offender registrants (AS 12.63.010) are expressly prohibited from enrolling. Enrollment is for five-year renewable periods. The department must disclose addresses to peace officers pursuant to search warrants. Unauthorized disclosure of a protected address is a Class A misdemeanor. The program administrator is DOA, not DPS.
Direct DPS impact: Peace officers are eligible enrollees; AST personnel may utilize the program. DPS will receive address disclosures pursuant to search warrants. AST will investigate unauthorized disclosure violations as a Class A misdemeanor. Regulatory authority rests with DOA; DPS has no administrative role in program operation.

Section 76. [AS 44.23.080\(a\)](#) Administrative Subpoenas — Internet Service Records: Adds AS 11.61.121 and 11.61.122 (generated obscene CSAM) to the offenses for which a law enforcement officer may apply to the attorney general for an administrative subpoena to obtain ISP business records. **Direct DPS impact:** Expands AST investigative subpoena authority to cover the new generated obscene CSAM offenses.

Section 77. [AS 44.28.040](#) Tribal Liaison — Department of Corrections (New): Requires the Department of Corrections to employ at least one tribal liaison to facilitate communication with

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

federally recognized tribes and cultural programs. No DPS impact; Department of Corrections impact.

Section 78. [AS 44.41.065\(a\)](#) Sexual Assault Examination Kits — Collection and Submission: Substantially restructures the SAK submission process. Key changes:

- **Health care providers** gathering SAK evidence must notify the appropriate law enforcement agency within **14 days**.
- **Law enforcement agencies** must submit the SAK to an accredited laboratory in coordination with DPS within **20 days** (reduced from 30 days) of gathering evidence or receiving notification from a health care provider.
- **Law enforcement agencies** must notify victims of test completion within **14 days** of lab completion.
- **Laboratories** must complete serological or DNA testing within **120 days** of receiving the kit.

Direct DPS impact: DPS is named as the coordination point for SAK submission. Existing workload and coordination procedures will require review. The 20-day submission window is more stringent than the prior 30-day window.

Section 79. [AS 44.41.065\(b\)](#) Sexual Assault Examination Kits — Admissibility: Updates the statutory cross-reference to reflect the restructured subsection (a). No substantive change to the inadmissibility protection.

Section 80. [AS 44.41.065\(c\)](#) Sexual Assault Examination Kits — Resolved Cases: Updates the cross-reference to reflect restructured subsection (a). No substantive change to the exemption for cases resolved before testing.

Section 81. [AS 44.41.065\(d\)\(1\)](#) Sexual Assault Examination Kits — Definitions: Removes the redundant definition of "agency" as a synonym for "law enforcement agency," retaining only the definition of "law enforcement agency." Technical cleanup.

Section 82. [AS 44.41.065\(e\)](#) Sexual Assault Examination Kits — Tracking System Entry (New): Requires health care providers, law enforcement agencies, and laboratories in possession of a SAK to enter information specified by DPS into the SAK tracking system established under

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

AS 44.41.067 (Section 83). **Direct DPS impact:** DPS is designated as the entity specifying what information must be entered and the form and timing of entry. Creates new statutory DPS administrative and rulemaking responsibilities.

Section 83. [AS 44.41.067](#) Sexual Assault Examination Kit Tracking System (New): Requires DPS to develop and operate a statewide SAK tracking system to track kit status and location from evidence collection through serological or DNA testing. The system must allow victims to access their own kit's tracking information and opt into automated status notifications. The tracking system is confidential and not a public record, though DPS may incorporate tracking data into its annual report under AS 44.41.070. **Direct DPS impact:** Codifies dedicated system development, ongoing operation, data entry standards, victim access portal, and integration with health care providers, law enforcement, and laboratories statewide.

Section 84. [AS 47.12.110\(d\)](#) Delinquency Adjudication Hearings — Open to Public: Adds distribution of generated obscene CSAM under AS 11.61.121 to the list of offenses for which the department may move to open a juvenile delinquency hearing to the public. No direct DPS impact; Department of Family and Community Services impact.

Section 85. [AS 47.12.315\(a\)](#) Juvenile Records — Public Disclosure: Adds distribution of generated obscene CSAM under AS 11.61.121 to the list of offenses for which the department shall publicly disclose information about a minor who was at least 13 years of age at the time of commission. No direct DPS impact; Department of Family and Community Services impact.

Section 86. Repeals: Repeals the following provisions:

- **AS 11.41.436(a)(6)** — Subsumed by the revised sexual abuse of a minor in the second degree structure in Section 10.
- **AS 11.41.440(a)(2)** — Sexual abuse of a minor in the fourth degree subprovision.
- **AS 12.63.100(7)(C)(ii)** — Sex offense definition subprovision for sexual contact with a minor under 16 (renumbered/restructured in Section 60).
- **AS 44.41.070(a)** — Repeals an existing SAK reporting provision, presumably superseded by the new tracking system provisions in Sections 78–83.

Direct DPS impact: The repeal of AS 44.41.070(a) affects DPS's existing SAK reporting obligations; the new tracking system framework in Section 83 references the remaining reporting authority.

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

Section 87. Sunset — Marijuana Record Restriction: The requirement to submit a request to not restrict dissemination of marijuana conviction record in Section 57 (AS 12.62.160(f)) sunsets on **January 1, 2028**. Effective January 1, 2028. **Direct DPS impact:** DPS must implement the restriction by January 1, 2027, and plan for automated restriction compliance by January 1, 2028.

Section 88. Applicability — Offenses and Sentences: Establishes applicability dates. Substantive criminal offense amendments apply to offenses committed on or after the effective date (July 1, 2026). Sentencing provisions apply to sentences imposed on or after the effective date for conduct occurring on or after that date. Parole and medical release provisions apply to all currently incarcerated prisoners. The victim counseling center definition applies retroactively. No independent DPS administrative impact; governs enforcement timing.

Sections 89–90. Transition Provisions: Section 89 provides transitional protections for current Board of Parole members. Section 90 authorizes DOA to adopt regulations implementing the Address Confidentiality Program prior to the effective date; regulations take effect immediately upon adoption (AS 01.10.070(c)). No direct DPS impact.

Sections 91–94. Effective Dates:

- **Immediate (upon passage):** Section 90 (DOA ACP regulation authority).
- **January 1, 2027:** Sections 56, 57 (criminal history/marijuana records), and 68–71 (Board of Parole expansion and composition).
- **January 1, 2028:** Section 87 (sunset of marijuana record restriction).
- **July 1, 2026:** All remaining sections.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

Rider Bills:

- [SB 31](#) ADDRESS CONFIDENTIALITY PROGRAM
- [HB 101](#) CRIMES AGAINST MINORS; AGE CONSENT TO 18
- [HB 239](#) CRIM. NEG. HOMICIDE; FAILURE TO ASSIST

CONFIDENTIAL & DELIBERATIVE

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

- [SB 247](#) GENERATED OBSCENE CHLD SEX ABUSE MATERIAL
- [HB 62](#) SEXUAL ASSAULT EXAMINATION KITS/TRACKING
- [HB 242](#) SEXUAL ASSAULT BY HEALTH CARE WORKER
- [SB 100](#) THEFT: ORGANIZED; MED. RECORDS; MAIL
- [SB 233](#) CONTROLLED SUBSTANCES ADVISORY COMMITTEE
- [HB 81](#) ACCESS TO MARIJUANA CONVICTION RECORDS
- [HB 384](#) DEFINITION OF 'VICTIM COUNSELING CENTER'
- [SB 17](#) CRIME COUNTERFEIT/NONFUNCTIONING AIRBAG
- [SB 62](#) BOARD OF PAROLE: MEMBERSHIP, REPORT

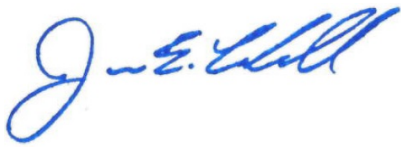
Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

State of Alaska Scientific Crime Detection Laboratory (SCDL)

Commissioner's Signature:  _____ Date: May 20, 2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

CONFIDENTIAL & DELIBERATIVE